

Application and Appeals Rules

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[G. O. Ms. No. 3158, Revenue, dated 29th July 1961, SRO No. A-894 of 1961. - In exercise of the powers conferred by clause \(ii\) of sub-section \(2\) of section 116 of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 \(Tamil Nadu Act 22 of 1959\), the Governor of Tamil Nadu hereby makes the following Rules, namely:-](#)

[1.](#)

[These Rules may be called the Applications and Appeals Rules.](#)

[2.](#)

[All applications, affidavits and memoranda of appeals presented to the Government, the Commissioner, the Joint Commissioner, the Deputy Commissioner and the Assistant Commissioner shall be written, typewritten or printed, fairly](#)

and legibly on substantial white foolscap folio paper and separate sheets shall be stitched together book-wise. The writing or printing may be on both sides of the paper, and numbers shall be expressed in figures.

3.

(1)

An application to the Government, the Commissioner, the Joint Commissioner, the Deputy Commissioner or an Assistant Commissioner not being an application under section 21, 21-A or section 114 shall be headed with a cause title as set out in Form I appended to these Rules. The names of the parties shall be separately numbered and described as applicants and respondents, as the case may be.

(2)

A memorandum of appeal or an application for revision under section 21, 21-A or section 114 shall be headed with a cause-title setting out the name of the authority against whose decision the appeal or application is preferred, the serial number and date of such decision and the names of the parties separately and respondents or as applicants and respondents, as the case may be. The cause-title shall be as set out in Form-II appended to these rules.

(3)

An interlocutory application (i.e.) an application in any application or appeal already instituted, shall bear the same cause-title as in the application or the appeal, with the addition of the following at the top:-

Miscellaneous Application No.....of 20....

4.

All applications or memorandum of appeal shall state in distinct paragraphs the reliefs sought and the grounds on which they are sought and shall be verified at the foot in the manner provided for the verification of a plaint in the Code of Civil Procedure, 1908 (Central Act V of 1908).

5.

All applications, memorandum of appeal and interlocutory applications shall be presented in person by the parties or any of them or their duly authorized pleaders at the office of the Secretary to the Government of the Department concerned or that of the Commissioner, the Joint Commissioner, the Deputy Commissioner or the Assistant Commissioner, as the case may be, or sent by registered post to the Secretary to Government of the department concerned, to the Chief Ministerial Officer of the office of the Commissioner, the Joint Commissioner, Deputy Commissioner or an Assistant Commissioner, as the case may be.

6.

Where an application or memorandum of appeal or other proceeding is presented on behalf of a party by a pleader, such pleader shall file a vakalathnama duly executed and attested in the manner required by the Civil Rules of Practice framed by the High Court of Judicature at Madras. Where a pleader files a vakalathnama in a proceeding, a fresh or additional vakalathnama shall not be necessary in interlocutory applications or connected proceedings before the same authority.

7.

The party presenting an application or memorandum of appeal to the Commissioner, the Joint Commissioner, the Deputy Commissioner or an Assistant Commissioner, as the case may be, shall file along with it as many true copies thereof as there are respondents together with two additional copies. Such copies shall be duly signed by the parties or any of them or their pleader.

8.

Every memorandum of appeal and every application under section 21, 2. - A or section 114 for revision of a proceeding, other than a proceeding of a trustee shall be accompanied by an authenticated or a certified copy of the order and a certified copy of the annexure, if any, to such order, appealed or sought to be revised.

Appendix

Form I

Form prescribed in rule 3(1) of the rules under section 116(2) (II) of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959)

Before the Government of Tamil Nadu.

Before the Commissioner for Hindu Religious and Charitable Endowments Administration Department.

Before the Joint/deputy Commissioner for Hindu Religious and Charitable Endowments Administration Department.

Before the Assistant Commissioner for Hindu Religious and Charitable Endowments Administration Department.

Application No of 20.....

Under sectionof the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959)

Between

Applicants(s)

and

Respondents (s)

Form II

Form Prescribed in rule 3(2) of the rules under section 116(2) (II) of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959)

Before the Government of Tamil Nadu.

Before the Commissioner or Joint/deputy Commissioner of Hindu Religious and Charitable Endowments Administration Department.

Revision/Appeal No.....20.....

Under section....of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959).

Between

Applicants (s)

and

Respondents (s)

From the Order No. dated.....of the Commissioner/the Joint/Deputy Commissioner/the Assistant Commissioner/the trustee of Sri.....

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